

ORIGINAL

CC: 020 (020)
060(2)
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BEFORE THE FEDERAL MARITIME COMMISSION

AL KOGAN d/b/a GALAWAY
INTERNATIONAL,

Complainant/Counter-Respondent,

v.

WORLD EXPRESS SHIPPING,
TRANSPORTATION AND FORWARDING
SERVICES, INC , an Illinois corporation,
d/b/a W E S T FORWARDING SERVICES
(FMC Lic # 3 118-R),

Respondent/Counter-Complainant.

Docket No. 00-04

HON. NORMAN D. KLINE

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FEDERAL MARITIME COMMISSION

MOTION TO LIFT PROTECTIVE ORDER

Complainant/Counter-Respondent AL KOGAN d/b/a GALAWAY

INTERNATIONAL ("Al Kogan"), by and through his attorney Jonathan Clark Green,
P C , hereby respectfully moves the Commission to lift the protective order issued orally
on July 25, 2000 (full order issued August 24, 2000), covering the deposition transcript of
Al Kogan's expert witness Peter Janetzki, taken on July 27, 2000, for the entire
deposition transcript, including exhibits

In support of this motion, Al Kogan states as follows

1 Upon motion of Respondent/Counter-Claimant WEST Forwarding
Services, Inc , this Commission, on July 25, 2000, issued a protective order in this cause
covering the deposition transcript of Al Kogan's expert witness, Peter Janetzki, which
was taken in Chicago on July 27, 2000.

2 The protective order was issued as a precautionary step to prevent the public release of information relating to matters that WEST Forwarding Services, Inc., might deem to be confidential, proprietary, or of such sensitive nature that Respondent WEST could suffer harm to its business if the information were to be disclosed publicly

3 As is apparent from Mr. Janetzki's transcript itself, all matters discussed in the transcript went to his independent professional assessment and analysis as an expert witness of activities in which he was in no way personally involved, and no information of a confidential, proprietary or sensitive nature in regard to WEST Forwarding was divulged. Hence, no such confidential, proprietary or sensitive information would be released if the protective order issued on July 25, 2000, was lifted and the entire transcript, with exhibits, was allowed to be released publicly

WHEREFORE, Al Kogan respectfully prays that this Commission lift the protective order entered in this cause on July 25, 2000, in regard to the deposition transcript taken of Peter Janetzki on July 27, 2000, for the entire transcript, including exhibits

Respectfully submitted,

AL KOGAN d/b/a
GALAWAY INTERNATIONAL

By his attorney,


Jonathan Clark Green
JONATHAN CLARK GREEN, P.C.
350 North LaSalle Street, Suite 800
Chicago, IL 60610-4798
(312) 494-1000

CERTIFICATE OF SERVICE

The undersigned, being first duly sworn upon oath, deposes and states that, on September 28, 2000, a copy of the foregoing MOTION TO LIFT PROTECTIVE ORDER was filed, by U S Mail, proper postage prepaid, with the Secretary of the Federal Maritime Commission, was forwarded by facsimile transmission to Administrative Law Judge Norman D Kline of the Federal Maritime Commission and the following opposing counsel, and was served, by U S Mail, proper postage pre-paid, on the following opposing counsel

Peggy Chaplin
SANDLER, TRAVIS & ROSENBERG, P A.
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Francesca Russo-Di Staulo
SANDLER, TRAVIS & ROSENBERG, P A.
The Waterford – Suite 600
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Miami, Florida 33 126

SUBSCIBED and SWORN to
before me this 28th day
of September, 2000

A handwritten signature in black ink, appearing to read "Joseph A. [unclear]", written over a horizontal line.

Notary Public

STATE OF ILLINOIS)
)
COUNTY OF COOK) SS

A F F I D A V I T

I, JEFF VICTOR, having been duly sworn upon oath, deposes and states as follows

1 I am the Vice-President of Treatment Products, Ltd., a manufacturer of *auto care* products, located at 4701 West Augusta Blvd., Chicago

2 In February of 1998, I arranged to sell some auto cleaning products that were manufactured by our company to Al Kogan d/b/a Galaway International, an export company, who, in turn, was to redistribute the products to his customer in Moscow, Russia. Mr Kogan had found the Moscow *customer* for the products, and he informed me that he had arranged with W.E.S.T. Forwarding Company to have the products, identified as 40-foot container #ZCSU214858-0, picked up from our company and shipped to Moscow, via Kotka, Finland, which was required for the sale of the products to that customer

3 As had occurred in the few months previous to this shipment, once Mr Kogan had placed the basic order with WEST Forwarding by telephone, they took over and communicated directly with our company concerning the pick-up and delivery schedule for loading the shipment. In late February 1998, WEST Forwarding picked-up the products described in paragraph 2, above, for shipment to Moscow, via Kotka, Finland, from our company's premises

4 About three weeks later, in late March of 1998, I was notified by Al Kogan that he was told ~~that~~ some sort of problem occurred with the shipment. Due to his occasional difficulty with ~~the English~~ language, he asked me to call WEST Forwarding on his behalf to ~~inquire~~ as to

what the problem exactly was concerning the routing of the shipment and why it was in Haifa, Israel. I then telephoned Faith Krzeminski of W.E S T forwarding to inquire, on Al Kogan's behalf, what the problem with the shipment's routing to Moscow was, and why it was mistakenly sent to Haifa, Israel. She stated that it was not their fault since Al Kogan had requested that they use a company called Atlantic Ocean Lines (AOL) out of New York, which was shipping the product through Haifa, Isreal, and Odessa, Ukraine, to Moscow, because it was cheaper. This did not make sense to me, since Al had told me about not being involved at all with the shipping details, and the fact that Al had insisted-that the shipment had to go through Kotka.

5 I then called Al Kogan to see if this was true. Al insisted to me that he did not know anything about AOL and that WEST was lying. I then called Faith Krzeminski back and asked her about the inconsistency. She then stating that she really did not know who told her to use AOL or how she got AOL's name. She then stated that all she knew was that Al Kogan was always looking for a better price, and this was cheaper.

6 I was concerned about our shipment, so I agreed to accompany Al Kogan to a meeting called by WEST Forwarding at their offices in Bensenville, Illinois. At that meeting, Jean De Keyser, W E S T Forwarding's owner, assured us that he would try to help Al immediately reroute the shipment to Kotka, Finland. He told us that a few minor expenses would be incurred, involving a few hundred dollars for an attorney in Israel. Although both Al and I felt WEST Forwarding should be responsible for all those expenses, Al really had no control over the shipment whatsoever, with a lot to lose (over \$70,000 worth of products), so when Jean De Keyser suggested that those minor expenses be split three ways, equally between WEST, Al and myself, to re-direct

the shipment back to Kotka, both Al and I agreed, as long as the expenses were only minimal, as he described them.

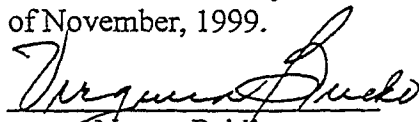
7 The next thing I learned was that the shipment did finally arrive in Kotka, Finland, nearly two months later, in May 1998, but when Al Kogan sought to release the shipment, WEST refused and held the shipment hostage for an outrageous new demand of \$13,000, when the original shipping cost was only \$5,440.10. WEST's new claim for over \$7,000 in excess expense payments was never contemplated, nor agreed to, by myself or Mr Kogan. Due to WEST's long delays on this shipment, our customer rejected the shipment, and Al Kogan was forced to find an alternate customer. By August 1998, Al did find an alternate customer, and was able to arrange for the release and sale of the product for less than the original purchase price. Al then made sure that our company, Treatment Products, Ltd., at least, was made whole again by personally paying off the outstanding balance, in excess of \$4,000, that was still due to us for the shipment.

8 Despite his occasional difficulties with the English language, I have always known Al Kogan to be an honest, dependable and forthright businessman who has extensive and dependable business contacts throughout Eastern Europe.

FURTHER AFFIANT SAYETH NOT


JEFF VICTOR
Vice-President, Treatment Products, Ltd.

SUBSCRIBED and SWORN to
before me this 8th day
of November, 1999.


Notary Public

